

The U.P. Govadh Nivaran Niyamavali, 1964

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State of Uttar Pradesh - Act

The U.P. Govadh Nivaran Niyamavali, 1964

UTTAR PRADESH

India

The U.P. Govadh Nivaran Niyamavali, 1964

Rule THE-U-P-GOVADH-NIVARAN-NIYAMAVALI-1964 of 1964

Published on 1 January 1964

Commenced on 1 January 1964

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[Note: The original publication document is not available and this content could not be verified.]

The U.P. Govadh Nivaran Niyamavali, 1964

Published vide Notification No. 248/12-E - 37-55, dated June 24, 1964, published in U.P. Gazette, Part 1-A, dated July 4, 1964, page 1424

In exercise of the powers under Section 10 of the Uttar Pradesh Prevention of Cow Slaughter Act, 1955 (U.P. Act No. I of 1956), read with Section 21 of the U.P. General Clauses Act, 1904 (U.P. Act No. I of 1904) and in supersession of the Uttar Pradesh Prevention of Cow Slaughter Rules, 1956, the Governor of Uttar Pradesh is pleased to make the following rules:

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Govadh Nivaran Niyamavali, 1964.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context:

(a)

"Act" means the Uttar Pradesh Prevention of Cow Slaughter Act, 1955,

(b)

"Form" means a Form given in the Schedule to these rules;

(c)

"Licensing authority" means the District Magistrate or any other officer authorised by him to perform the functions of licensing authority under these rules;

(d)

"Medicinal purposes" means the use of beef or beef products in the diet of patients or for medicines as may be notified by the State Government; and

(e)

"local authority" includes a Gaon Sabha.

3.

Any person intending to slaughter or to cause to be slaughtered or intending to offer or to cause to be offered for slaughter a bull or bullock shall apply in Form "A" to the competent authority of the area in which the bull or bullock is to be slaughtered for the issue of a certificate that the bull or bullock is fit for slaughter.

4.

On receipt of the application the competent authority shall fix a date for the production of the bull or bullock for examination at place to be specified for the purpose and give intimation thereof to the applicant.

5.

After examining the bull or bullock the competent authority shall either issue a certificate in Form "B" or refuse to issue the same. In either case it shall record its reasons on the application.

6.

Any person whose cow, bull or bullock is suffering or is believed to be suffering from a contagious or an infectious disease shall make an application in Form "C" to the nearest Veterinary Officer or Veterinary Assistant Surgeon available, with a view to having it ascertained whether the cow, bull or bullock is really suffering from such a disease.

7.

The Veterinary Officer or Veterinary Assistant Surgeon shall examine the animal on the date and at the place previously fixed as intimated to the applicant, and if he is satisfied that the animal is suffering from any of the contagious or infectious diseases as have been notified as such by the State Government, he shall issue a certificate in Form "D" for its slaughter. In any case he will record his findings on the application.

8.

After the certificate in Form "D" has been obtained, the owner of such cow, bull or bullock may slaughter it or cause it to be slaughtered either on his own land or at a place reserved for the purpose by a local authority.

9.

When a cow, bull or bullock is so slaughtered the person who slaughters or causes to be slaughtered such cow, bull or bullock shall within 24 hours of the slaughter lodge information of the said slaughter in Form "E" with the officer who granted the certificate in Form "D".

10.

The carcass of such a cow, bull or bullock will either be buried deep on the owner's own land or at a place reserved for this purpose by a local authority.

11.

The slaughter of a cow, bull or bullock, which is subjected to experimentation in the interest of medical and public health research, shall, when done without a certificate under the Act, be in accordance with the following conditions:

(a)

the State Government or the District Magistrate shall be intimated of the date and place of slaughter at least seven days

before such date; and

(b)

a register shall be maintained giving particulars of the cows, bulls or bullocks slaughtered, the dates and places of their slaughter and the experimental or research work undertaken :

Provided that the State Government may in public interest exempt any person from the requirements of clause (a).

12.

No person shall sell or transport or offer for sale or transport or cause to be sold or transported beef or beef products except under and in accordance with the terms of a licence in Form "F".

13.

Any person desirous of obtaining a licence in Form "F" or having that licence renewed shall make an application in writing to the licensing authority and the licence shall be granted or renewed, as the case may be, unless the licensing authority for reasonable grounds which shall be recorded, refuses the same.

14.

(1)

Subject to the provisions of sub-rule (2) and Rule 15 a licence shall remain in force up to the end of the year in which it is granted or renewed.

(2)

A licence shall terminate on the death of the licence holder, or, if granted to a firm or company, on the winding up or transfer of business of such firm or company.

15.

The licensing authority may, after allowing the licensee an opportunity of showing cause against the proposed action, and for reasons to be recorded in writing, cancel a licence.

16.

[

[Substituted by Notification No. 7141/12-P-1-92, dated 13-11-1992, (w.e.f. 1st January, 1994).]

(1)

Any person intending to transport or the offer for transport or to cause to transport any cow, bull or bullock, the slaughter whereof is punishable under this Act in any place in Uttar Pradesh from any place within the State to any place outside the State shall apply for a permit to the officer authorised under Section 5-A of the Act on prescribed Form "G".

(2)

The officer authorised under Section 5-A of the Act may grant such permit on payment of fee of Rs. 5.00 (Rupees five) per cow, bull or bullock to be deposited through treasury Challan under the receipt head '110 - Puashupalan - A - Other receipt (6) Misc.' In case the animal so transported is brought back to the State within the period of six months from the date of issue of the permit, the fee Rs. 5.00 shall be refunded to the permit-holder, if the refund is claimed. All animal intended to be transported shall be tattooed in right ear prior to the transportation from the State.

(3)

Cow, bull or bullock transported without a valid permit shall be confiscated and shall be auctioned and the sale proceeds will be deposited under the receipt head given in sub-rule (2) above and such person, who causes unauthorised transport shall be prosecuted under Section 8 of the Act.

(4)

The permit referred in sub-rule (2) shall be in Form 'H'.

(5)

In the event of death of the cow, bull or bullock being so transported prior to its return, the permit-holder shall submit the death certificate from the local Veterinary Surgeon to the officer authorised under Section 5-A of the Act failing which he shall be liable for prosecution under Section 8 of the Act.

(6)

These rules shall also apply to the cow, bulls or bullocks transported to cattle fairs, exhibitions and markets outside the State. The permit-holder shall have to submit a certificate of sale from the manager of such fairs, exhibitions and market to the officer authorised under Section 5-A of the Act on Form T failing which he shall be liable to prosecution under Section 8 of the Act.

(7)

In case cow, bulls or bullocks are needed by another State Government of recognised institutions outside the State, such permit for transportation of animal will be granted on deposit of requisite fees by the party concerned under sub-rule (2), but the application shall have to be routed through the State Government concerned:]

Schedule

Form "A"

[See Rule 3]

Application for certificate of Competent Authority

To

The

Competent Authority

I have the honour to request you kindly to examine my (here describe the animal's colour and approximate age, etc.) which is over the age of 15 years or has become permanently unfit and unserviceable for the purpose of [breeding]

[In the case of bull.]

/ [draught]

[In the case of bullocks.]

and any kind of agricultural operation and issue me a certificate for the slaughter of the said.....as enquired under Section 3 of the Uttar Pradesh Govadh Nivaran Adhiniyam, 1955.

Yours faithfully,

Dated

Signature of applicant Address.....

(To be recorded by the Competent Authority)

Date and place fixed for the production of the animal Applicant intimated by on Date on which and the place where the animal was examined Rejected/Certified fit for slaughter for the following reasons:

Competent Authority.

Dated.....1964

District.....

Form "B"

[See Rule 5]

Certificate of fitness for slaughter

It is hereby certified that the (here describe the animal, colour, etc.) is over the age of 15 years or it has become permanently unfit and unserviceable for the purposes of draught and any kind of agricultural [operation]

[In the case of bulls.]

/[breeding]

[In the case of bullocks.]

. It is further certified that the permanent unfitness or un-serviceability has not been caused deliberately. The said animal may be slaughtered at

Place

[Competent Authority.]

[Also give the designation of the Competent Authority.]

District

Dated

Form "C"

[See Rule 6]

Application for certificate of disease

To

The Veterinary Officer/Veterinary Assistant Surgeon.....

Sir,

I have the honour to request you to kindly examine my (here describe the animal's colour and approximate age) which is suspected to be suffering from a notified contagious or infectious

disease and to issue me a certificate for the slaughter of the said as required under the Uttar Pradesh Govadh Nivaran Niyamawali, 1964.

Yours faithfully

.....

Signature,

Address

Dated

(To be recorded by the Competent Authority)

Date and place fixed for the examination of the animal Applicant intimated by on Date on which and the place where the animal was examined

Finding

The animal is/is not suffering from

My reasons for the finding are-

.....

.....

.....

Veterinary Officer/

Veterinary Assistant Surgeon

District

Dated

Form "D"

[See Rule 7]

Certificate of disease

I Veterinary Officer/Veterinary Assistant Surgeon of having examined hereby certify that there are reasonable grounds for confirming that the is affected with a notified contagious disease and may be slaughtered.

Veterinary Officer/

Veterinary Assistant Surgeon

Dated

Form "E"

[See Rule 9]

Information of Slaughter

To

The Veterinary Officer/

Veterinary Assistant Surgeon,

.....

This is to intimate that the has been slaughtered on at within the premises on certificate no. dated issued by the Veterinary Officer/ Veterinary Assistant Surgeon

Dated

Signature and address of slaughterer or owner.

Form "F"

Form "F"

(See Rule 12)

(See Rule 12)

Licence to sell or transport beef and beef

products for medicinal purposes

Licence to sell or transport beef and beef

products for medicinal purposes

Counterfoil of licence

Book No.

Book No.

Serial No.

Serial No.

Sri..... son of Sri.....

resident/proprietor of..... is permitted to sell or

transport or offer for sale or transport or cause to be sold or

transported beef and beef product within the limits of.....

for medicinal purposes on the advice of a registered medical

practitioner during the period up to December 31, 19.....

Signature and designation of Licensing Authority

Date of Issue.....

Renewed for the period up to.....

Signature and designation of Licensing Authority.

[Form "G"]

[Substituted by Notification No. 7141/12-P-1-92, dated 13-11-1992, (w.e.f. 1-1-1994).]

[See Rule 16 (1)]

Application for permit for transport of cow, bull or bullock outside the State

To

.....

(The officer authorised under Section 5-A of the Act)

Sir,

I have the honour to request you to kindly grant a permit for the transportation of cow/bull/bullock

..... brief description of animals with appropriate age, from to address of

destination. These animals are being transported for the purpose of

Yours faithfully

(Name)

with full address

Note. - In case the permit is not granted reasons thereof may be recorded on the application.

[Form "H"]

[Substituted by Notification No. 7141/12-P-1-92, dated 13-11-1992, (w.e.f. 1-1-1994).]

[See Rule 16 (4)]

Permit for transportation (in triplicate) Shri son of resident of

PO PS District is hereby authorised to transport cow/

bull/ bullock from to (Address of destination) by rail/ road for the purpose of (Brief

description of animals).

Date.....

Signature and seal of officer authorised under Section 5-A of the Act.

[Form "I"]

[Substituted by Notification No. 7141/12-P-1-92, dated 13-11-1992, (w.e.f. 1-1-1994).]

[See Rule 16 (6)]

Certificate of sale of cow/bull/bullock

Certified that Sri son of resident of P.O. P.S.

..... district brought (cow/bull/bullock) to this fair/market under permit No.

dated issued by and has sold(Breeding/Drought) (cow/bull/bullock) at

this fair/exhibition/market for purpose of

Signature and seal of the Manger (Organiser) Fair/ Exhibition/Market, Place, District and State.

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Translation